

FIRST INFORMATION REPORT
(Under Section 154 Cr.P.C.)

(धारा 154 दंड प्रक्रिया संहिता के तहत)

1. District (ज़िला): SOUTH-EAST P.S.(थाना): SHAHEEN BAGH Year(वर्ष): 2024 FIR No(प्र.सू.रि.सं.):0167 Date : 01/06/2024
(DELHI)
2. Act(s)(अधिनियम): Section(s)(धारा(एँ)):
- IPC 1860 498A/406/354/34
3. Occurrence of Offence (अपराध की घटना):
(a) Day(दिन): Date From(दिनांक से): Date To(दिनांक तक):
Time Period (समय) Time From (समय से): Time To (समय तक):
(b) Information received at P.S.(थाना जहाँ सूचना प्राप्त हुई Date(दिनांक): 01/06/2024 Time 12:10 hrs
(c) General Diary Reference (रोजानामचा Entry No.(प्रविष्टि) 024A Date/Time 01/06/2024 12:29
4. Type of Information (सूचना का Written
5. Place of Occurrence (घटनास्थल): Beat No(बीट सं.): 04
(a) Direction and Distance from P.S (थाना से दूरी और
(b) Address(पता):
(c) In case, Outside the limit of the Police Station (यदि थाना सीमा के बाहर हैं):
Name of P.S(थाना का नाम): District(ज़िला):
6. Complainant / Informant (शिकायतकर्ता/सूचनाकर्ता):
(a) Name(नाम): SHABANA AHMAD (D/O) MASOOD AHMAD Nationality (राष्ट्रियता): INDIA
(b) Date/Year of Birth (जन्म तिथि 17/01/1988
(c) Passport No.(पासपोर्ट सं.): Date of Issue (जारी करने की तिथि Place of Issue (जारी करने का
(d) Occupation NOT KNOWN
(e) Address(पता): F-23/2 KH-390, SECOND FLOOR, ABUL FAZAL ENCLAVE PART-2, JAMIA NAGAR
OKHLA NEW DELHI, SHAHEEN BAGH, SOUTH-EAST, DELHI, INDIA,
7. Details of Known/Suspect/Unknown accused with full particulars(attach separate sheet if necessary)(ज्ञात/ संदिग्ध / अज्ञात
का पूरे विवरण सहित वर्णन
8. Reason for delay in reporting by the complainant/informant (शिकायतकर्ता / सूचनाकर्ता द्वारा रिपोर्ट देरी से दर्ज कराने के कारण):
NO DELAY
9. Particulars of the properties stolen/involved (attach separate sheet if necessary):
Sl.No. (क्र.सं.) Property Type(Description) Est. Value(Rs.)(मूल्य (रु में))
- 10 Total value of property stolen (चोरी हुई सम्पत्ति का कुल
- 11 Inquest Report / U.D. Case No., if any (मृत्यु समीक्षा रिपोर्ट / यू.डी.प्रकरण नं., यदि कोई

12 F.I.R. Contents (attach separate sheet, if required)(प्रथम सूचना रिपोर्ट तथ्य):

Comp-126-C/CAW/Cell/SED Dt-13/02/24 Dy. No 120-C P.Sec/Addl.DCP-II/SED Dt 13/2/24 ACP CAW Cell/SED/EO- ASI Mohar Singh for N/A Addl.DCP-II/SED dt 13/2/24 To, The Assistant Commissioner of Police Crime Against Women Cell Srinivaspuri, Delhi-110048 Sub: Complaint against (1) Nomaan Arif S/o Mohammad Arif (husband), (2) Mohammad Arif (Father in law), (3) Sana Arif D/o Mohammad Arif (Sister in law), (4) Nida Arif D/o Mohammad Arif (Sister in law), (5) Nilofer Arif w/o Asim Mohsin (Sister in law), (6) Asim Mohsin S/o Not Known (Brother in law/ Jija), (7) Zameer Mohammad S/o Not Known (Mama of Nomaan Arif) All R/o House No. 84, Kila Khera, Near Water Tanks, Ujhani, District Badaun, Uttar Pradesh for demand of dowry, misappropriation of isticdhan,, outraging the modesty and other offences committed by the accused persons upon the complainant. Respected Sir, 1. The complainant would like to submit that That the marriage between the complainant and the accused No.1 was solemnized according to Muslim rites and ceremonies on 26/12/2022 at SS Green Banquet Hall, By Pass Tiraha, Budaun Road, Ujhani (Budaun), Uttar Pradesh followed by Walima (Reception) and other functions (including engagement on 5/11/2022) on 27.12.2022 and 28.12.2022 respectively. After the solemnization of the marriage, the complainant was brought to House no. H-84, Kila Khera near Water Tanks, Ujhani District, Budaun, Uttar Pradesh at her matrimonial home. All the gifts and jewellery given to the complainant were taken by the accused no.3 and 5 from the complainant on the pretext of keeping them in safe custody and the same is not returned by them till date despite repeated requests made by the complainant. The list of articles and isticdhan/articles/jewellery/gifts etc.(except the car which was returned by accused no.1 with broken front windscreen to the complainant), which are under the custody of the above accused persons, 2. That after 2-3 days of marriage, the complainant came to know that accused no.2 is an alcoholic and he used to abuse me in day and night in drunken condition. 3 That in the night of 31.12.22, the accused no.2 was heavily drunken and when the complainant was in kitchen, accused no.2 suddenly came there and caught hold the complainant from her back and the complainant got shocked and screamed to let her go. The accused no.2 said that the complainant should get used to this kind of activities on a daily basis. The complainant immediately ran to her room and complained about the said incident to her husband/accused no.1 who instead of confronting the accused no.2 about the above said act, started abusing the complainant and also gave slaps to her and further said "mera baap kuchh bhi kare, tu mana nahi karegi aur tujhe sab sahan karna padega kutiya". 4. That the complainant on the next day of the above incident when informed the accused no.1 that she will tell the entire incident to her family and also take legal action against the accused no.2, the sister- in-laws namely accused no.3 & 5 consoled the complainant and also said sorry on behalf of the accused no.2 and further gave the assurance that the said incident will not be repeated in future. 5. That the accused no.6 and 7 started taunting the complainant that she had brought less cash and jewellery in the marriage and further taunted that if accused no.1 would have married according to the accused no.6 and 7, he would have got big house, big car and huge cash and jewellery in the marriage. The above said taunts not only caused mental distress to the complainant but also she was hurt emotionally. 6. That on 01.01.2023, the accused no.1 started demanding the salary of the complainant with the condition that she should give all the salary which she has earned from the day she joined her job. When complainant questioned about the same, the accused no.1 slapped her and also started abusing the complainant and her family in filthy language by saying that he had already informed the father of the complainant that he will take entire salary of the complainant and will give pocket money to the complainant at his own whims and fancies. 7. That the accused no.1 also used to ask the ATM pin of ATM Card of the complainant and when she refused to divulge the details of the ATM Card including PIN, the

accused no.1 used to beat her black and blue . 8. That on 02.01.2023, the accused no.1 came up with a new demand that he wants the share in the parental house of the complainant which is situated in Shaheen Bagh, Delhi. When the complainant flatly refused to accede to the above demand of the accused no.1, the accused no.1 in connivance with accused no.3 and 5 instigated the accused no.4 to beat the complainant. On the said instigation, the accused no.4 started throwing household articles on the complainant and somehow the complainant managed to save herself from the vicious attacks at the hands of the accused no.4. The complainant immediately made complaint to accused no.7 who was present there at the time of the said incident and asked him to intervene in the above matter being the elder of the family. However, accused no.7 flatly refused to intervene in the said matter by saying that the accused no.4 is not mentally stable and she is undergoing the medical treatment for the same. 9. That the accused no.1 on daily basis used to taunt the complainant for her physical appearance more particularly on her complexion, teeth etc. and further used to humiliate the complainant in every possible way in front of other accused persons to degrade the complainant because of which she has suffered both mentally and emotionally. 10. That the accused no.1 further forced the complainant that she should quit her job, if she is not ready to give her salary to him and also forced her to do all the household chores by herself without any help from anybody. Moreover, whenever, the complainant used to prepare the meals for the accused persons, they always used to discourage about the food cooked by the complainant by saying that "tujhe to khana banana ata hi nahi hai, shakal achhi nahi hai lekin khana to achha bana liya kar". 11. That the accused no.1 used to taunt the complainant that accused no.1's family will look suitable match for him if accused no.1 is not given share in the parental house of the complainant situated in Shaheen Bagh, Delhi. 12. That on 06.01.2023, the complainant and accused no.1 went for Honeymoon in Manali, Himachal where the accused no.1 constantly harassed the complainant whereby forcibly doing sexual intercourse causing immense physical pain to the complainant. Moreover, even during the honeymoon, the accused no.1 used to say that he would not live with the complainant at rented accommodation in Gurgaon and will live only in Delhi at the parental house of the complainant and then returned to her matrimonial home on 11.01.2023. However, due to the above physical trauma, the complainant had severe pain her abdomen and private parts which also caused terrible in her mensural cycle. 13. That on 11.01.2023, the accused no.7 called the complainant in front of all the other accused persons and said "yeh shadi sirf isliye ki hai ki tumhara kamaya hua sara paisa chahiye aur delhi me ghar chahiye". When the complainant showed her inability to accede to the above demand, the accused no.1 told the complainant that he will talk to the complainant's parents about fulfillment of the said demand. 14. That on 19.01.2023, the complainant along with the accused no.1 returned to Delhi since her leave got over and she was required to join her duties. Moreover, the accused no.1 was also required to join his duties at Gurgaon. It is pertinent to mention here that before marriage, the accused no.1 was living in Gurgaon in a rented accommodation due to his job. However, the accused no.1 with his preplanned planning told the parents of the complainant that he will live for sometimes at the house of the brother of the complainant which is situated at R. K. Puram, New Delhi as it was easy for him to commute from there. He further told the parents and brother of the complainant that he is looking for suitable rented accommodation for him and the complainant and till that time he will stay at the house of brother of the complainant which is situated at R. K. Puram, New Delhi. 15. That on 20.01.2023, after returning from the job, the accused no.1 informed the complainant that he would not shift to rented accommodation and will only shift at the parental home of the complainant situated at Shaheen Bagh, Delhi. The complainant was shocked by the above statement of the accused no.1 and informed her brother about the same and when the brother of the complainant confronted the accused no.1 about the above

statement, the accused no.1 also said the same things to brother of the complainant and also warned that his demand is not fulfilled, he would give triple talaq to the complainant. The brother of the complainant on seeing such attitude of the accused no.1 called his parents. The father of the complainant came to the residence of his son and requested the accused no.1 not to force them to accede to his illegal demand and further requested him to search a suitable rented accommodation for the complainant and himself, on this the accused no.1 told the father of the complainant that he would search the rented accommodation after one month and till then he would stay with the complainant at her brother's residence and thus, the accused no.1 along with complainant started residing at the house of brother of the complainant from 19.01.2023 onwards, 16. That since the marriage was duly consummated, the accused no.1 started pressurizing the complainant to conceive the child and forcefully performed sexual intercourse with the complainant, which caused her immense pain and she had irregular periods, for which she visited the doctor with accused no.1 to the doctors, the complainant & her husband/accused no.1 came to know that she was having a fibroid on her uterus on 14.02.2023. On coming to know this, the complainant was shocked and starting crying there, on this, the accused no.1 consoled the complainant and further told her that it is normal among the ladies to have such kind of problem and there is nothing to worry about the same and he would get proper treatment done to the complainant from the doctors who are specialist in this treatment. Moreover, even for the above treatment accused no.1 not even paid a single penny and the complainant and her family members have to bear the entire expenses and cost on the treatment of the complainant herein 17. That on 18.02.2023 the accused no.1 went to attend the marriage of daughter of complainant's Mama but the complainant could not go to attend the marriage as she was directed to attend the office during Saturday and Sunday in February till 28.02.2023 vide order dated 16.02.2023. 18. That on 19.02.2023 the accused no.1 came to Delhi along with the Car make NISSAN MEGNITE NO. DL3CCX3825 with damaged front windshield and parked the said car in the house of brother of the complainant by saying that "me kuchh din ke liye ghar ja raha hu, iska seesa tut gaya hai, thik kara dena, fir le jaunga". Thereafter he left on the same day i.e. 19.02.2023 and went to his house at the matrimonial home of the complainant. 19. That on 22.02.2023 the accused no.7 sent the message to father of the Complainant that "ya to third floor Shaheen Bagh, Delhi ki property ka nomaan ke name karo ya fir apni ladki ko ghar betha lo". On this the father of the complainant was shocked and tried to convince the accused no.1 in every possible way, however, accused no.7 always maintained the stand that this matrimonial alliance will only survived if the above condition is fulfilled. 20. That on 26.02.2023 after much persuasion and request made by the complainant and her family, the accused no.1 came to the residence of brother of the complainant and again demanded to get the property transferred in his name and on this note again left for his hometown/matrimonial home of complainant. 21. That father of the complainant tried many times to communicate with the accused persons to amicably settle matter in order to save the marriage of the complainant and accused no.1. However, the accused no.1 though regularly communicating with the complainant through phone and whatsapp messages but did not join the company of the complainant to resume his duties as a husband towards the complainant. After seeing no alternative, the father of the complainant along with Doctor Shafat (bicholiya) went to matrimonial home of the complainant on 12.05.2023. However, on that day accused no.1 refused to meet them. On the next day i.e. 13.05.2023 after several requests, the accused no.1 allowed them to meet them and accordingly the father of complainant & Doctor Shafat went to the house of the accused no.1 where accused no.1, 2 in presence of accused no.3, 4, 5, 6 & 7 again raised the similar demand for transfer of third floor in the property at Shaheen Bagh, Delhi and when their demand was not accepted by the father of the complainant, they warned that father of the complainant and his family members will face

dire consequences if they try to come again to the matrimonial home of the complainant by saying that "me tumhe jhutey case me fasa dunga, me to private aadmi hu or tumhari beti and tumhara beta sarkari nokri me hai, court kachehri ke dhakkey khatay rahenge". 22. That seeing the above situation and threat to the life, the complainant at present is staying at her parental home situated at Shaheen Bagh, Delhi. 23. That the complainant states that the complainant's marriage has failed due to persistent harassment, cruelty and torture at the hands of the accused persons because of which the complainant was subjected to immense humiliation, agony and pain. 24. That the accused persons not only abused the complainant financially, physically, mentally, and emotionally but were bent upon to falsely implicate the complainant and her family members in false cases and extending all types of cruelties which is still continuing till date. The complainant and her family members tried their best for reconciliation but of no avail. The complainant, therefore, request you to kindly look into the matter personally and necessary legal action may kindly be taken against all the accused persons named above and punish them for the offences committed by them. Thanking you
Dt. 13.02.2024 Yours faithfully SD English Sign. Shabane SHABANA AHMAD D/O MASOOD AHMAD W/O NOMAAN ARIF R/O F-23/2, KH. NO.390, SECOND FLOOR, SHAHEEN BAGH ABUL FAZA ENCLAVE, PART 2, JAMIA NAGAR, OKHLA, NEW DELHI 110025 Duty Officer PS Shaheen Bagh register a case U/S 4984/406/354/34 IPC is investigation handed over to me SD English Attested W/PSI Sakshi Yadv D-3606 PS- Shaheen Bagh Dt.01.06.24 कार्यवाही पुलिस :- उपरोक्त लेखपत्र के मिलने पर मन ASI/DO ने SHO साहब के आदेशानुसार Case FIR No. 167/2024 U/s 498A/406/354/34 IPC, Computer CCTNS Operator द्वारा अंकित Computer (CAS) कराकर मूल लेखपत्र व कम्प्यूटर प्रतिलिपी को अग्रिम विवेचना W/SI Sakshi Yadav No. D-3606 के हवाले की गई जो अभियोग की अग्रिम विवेचना करेंगे। अभियोग से संबंधित कागजात डाक के द्वारा उच्च अधिकारियों के पास में भिजवाये जायेंगे। अभियोग के प्रारूप को कर्तव्य अधिकारी से बाद कराकर चैक अंकित कम्प्यूटर किया गया। By ASI/DO

13 Action Taken Since the above information reveals commission of offence(s) u/s as mentioned at Item No. 2:

(की गयी कार्यवाही: चूंकि उपरोक्त जानकारी से पता चलता है कि किया गया अपराध मद सं.2 में उल्लेख धारा के तहत है):

OR (या)

(i) Registered the case and took up the

(प्रकरण दर्ज किया गया और जांच के लिए लिया)

(ii) Directed (Name of the I.O.) (जांच अधिकारी का नाम SAKSHI YADAV

Rank (पद):

SI (SUB-INSPECTOR)

No(सं.): 16220269

to take up the investigation (को जांच आपने पास में लेने के लिए निर्देश दिया गया) OR

(iii) Refused investigation due to (जांच के

OR (के कारण इंकार किया या)

(iv) Transferred to P.S.(name)(थाना):

District(ज़िला):

on point of jurisdiction (को क्षेत्राधिकार के कारण हस्तांतरित)

F.I.R read over to the complainant/informant, admitted to be correctly recorded and a copy given to the

free of cost: (शिकायतकर्ता / सूचनाकर्ता को प्राथमिकी पढ़ कर सुनाई गयी, सही दर्ज हुई माना और एक कॉपी निशुल्क शिकायतकर्ता को दी गयी):

R.O.A.C.(आर.ओ.ए.सी.):

District SOUTH-EAST (DELHI)

P.S: SHAHEEN BAGH

Year: 2024

FIR No: 0167

Date: 01/06/2024

14 Signature / Thumb Impression
of the Complainant / Informant:
(शिकायतकर्ता / सूचनाकर्ता के हस्ताक्षर / अंगूठे का निशान):

Signature of Officer

Name(नाम): REENA RANI

Rank (पद): ASST. SI (ASSISTANT SUB-INSPECTOR)

No.(सं.): 28940577

15 Date and Time of despatch to the court:
(अदालत में प्रेषण की दिनांक और समय):